

Court No. - 58

Case :- MATTERS UNDER ARTICLE 227 No. - 4194 of 2015

Petitioner :- Paschimanlal Vidyut Vitran Nigam Ltd. & Another

Respondent :- Mohammad Khalid & Another

Counsel for Petitioner :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Put up as a fresh case on 13 August 2015.

(Manoj Kumar Gupta, J.)

Order Date :- 12.8.2015

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Court No. - 58

Case :- MATTERS UNDER ARTICLE 227 No. - 4194 of 2015

Petitioner :- Paschimanlal Vidyut Vitran Nigam Ltd. & Another

Respondent :- Mohammad Khalid & Another

Counsel for Petitioner :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

As prayed, put up as a fresh case on 21.8.2015.

(Manoj Kumar Gupta, J.)

Order Date :- 14.8.2015

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Case :- MATTERS UNDER ARTICLE 227 No. - 4194 of 2015

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Respondent :- Mohammad Khalid & Another

Counsel for Petitioner :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

The first respondent, aggrieved by the issuance of a bill dated 19/2/2014 for a sum of Rs.4,65,128/- approached Permanent Lok Adalat contending that for the month, of January, 2014, the electricity consumed was for a sum of Rs.17,043.75p, the remaining amount of Rs.4,47,316.06p, demanded by the petitioners in respect of alleged arrears for the period September 2009 to December 2013, is wholly illegal and also barred by limitation.

It seems that at the time of inspection of the meter on 7/11/2013, it transpired that CT multiplying factor/multiplier to be used for calculating the electricity consumed, should have been 20 instead of 12 which was employed while issuing earlier bills. Accordingly, the differences in amount was sought to be recovered by issuing the bill in the month of February 2014.

The Permanent Lok Adalat, by impugned award dated 18/10/2014 has come to the conclusion that except a sum of Rs.1,11,829/- the remaining amount has become barred by time. For coming to such conclusion, the Permanent Lok Adalat has placed reliance on clause 6.15(b) of the Electricity Supply Code, 2005, which provides that no sum due from any consumer shall be recovered after the period of two years from the date, when such sum became first due unless such sum has been shown continuously as recoverable as arrears of charges of electricity supplied.

Learned counsel for the petitioners submitted that even according to the aforesaid provision, the difference in amount for last two years was recoverable. It is further submitted that under the Uttar Pradesh Government Electricity Undertaking (Dues Recovery), Act 1958, whereunder recovery of arrears of electricity are made from the consumer, it is specifically provided by Rule 5-A that notwithstanding anything in the Limitation Act, 1963, or any other law for the time being in force, the period of limitation in respect of any suit by or on behalf of the Board, for recovery of any dues under this Act, shall be six years. It is urged that even if the Board were to file a suit for recovery, it would have been within

limitation. As such the view taken by the Permanent Lok Adalat, is manifestly illegal.

The matter requires consideration.

Issue notice to the first respondent fixing a date in the week commencing 14 September 2015.

Steps to be taken within a week by registered post.

The first respondent, if he so desires, may file counter affidavit before the next date fixed in the case.

(Manoj Kumar Gupta, J.)

Order Date :- 21.8.2015

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